

Ohio Intestacy Chart

Descent of real property · Ohio Revised Code § 2105.06



Who inherits Ohio real property, minerals and surface, when a person dies without a will, under Ohio Revised Code § 2105.06. The bars show the fractional split of the land. A surviving spouse also takes a money amount off the top of the estate first, which can raise the spouse's land fraction above the fraction shown; that amount is noted where it applies. Current law governs deaths on or after March 22, 2001; earlier deaths follow the rules summarized at the bottom.

Married person — real property

Deaths on or after March 22, 2001. Fractional split of the land is shown; the spouse's money preferential is noted.

No children, or their lineal descendants

§ 2105.06(E)

All

Surviving spouse

Children, all of whom are also the surviving spouse's

§ 2105.06(B)

All

Surviving spouse

One child, who is not the surviving spouse's

§ 2105.06(C)

$\frac{1}{2}$

Surviving spouse

$\frac{1}{2}$

Child, or lineal descendants

The surviving spouse also takes the first \$20,000 off the top, so in land the spouse's share is one-half or more.

Two or more children, the spouse is the parent of at least one but not all

§ 2105.06(D)

$\frac{1}{3}$

Surviving spouse

$\frac{2}{3}$

Children, equally, per stirpes

The surviving spouse also takes the first \$60,000 off the top, so in land the spouse's share is one-third or more.

Two or more children, the spouse is the parent of none

§ 2105.06(D)

$\frac{1}{3}$

Surviving spouse

$\frac{2}{3}$

Children, equally, per stirpes

The surviving spouse also takes the first \$20,000 off the top, so in land the spouse's share is one-third or more.

No surviving spouse, or the share that does not pass to the spouse

The land descends in this order (§ 2105.06).

Surviving children or their lineal descendants

§ 2105.06(A)

All

Children and their descendants, per stirpes

No children; surviving parents

§ 2105.06(F)

 $\frac{1}{2}$

Father

 $\frac{1}{2}$

Mother

*If only one parent survives, that parent takes the whole share.***No children or parents; brothers and sisters or their descendants**

§ 2105.06(G)

All

Siblings, whole or half blood, or their descendants

No siblings; grandparents

§ 2105.06(H)

 $\frac{1}{2}$

Paternal grandparents

 $\frac{1}{2}$

Maternal grandparents

No grandparents or their descendants; next of kin

§ 2105.06(I)

All

Next of kin, no representation

No next of kin; stepchildren

§ 2105.06(J)

All

Stepchildren or their lineal descendants, per stirpes

No surviving spouse, kin, or stepchildren

§ 2105.06(K)

All

Escheats to the State of Ohio

Deaths before March 22, 2001

Earlier rules apply, and old chains can turn on the exact date of death. From 12/17/1986 to 3/21/2001 the spouse took a preferential of \$60,000, or \$20,000 if not the parent, plus one-half of the balance with one child or one-third with more. From 1/1/1976 to 12/16/1986 the amounts were \$30,000 and \$10,000. From 1/19/1932 to 12/31/1975 the split was fractional: one-half to the spouse with one child, one-third with two or more, and three-fourths to the spouse with one-fourth to the parents when there were no children. Before 1932, a surviving spouse took dower, a life estate, and property inherited from an ancestor followed ancestral-property rules. The full tables are in the Ohio Intestate Succession guide.

Full statute text: [Ohio Revised Code § 2105.06](#). Real property descends in parcenary, so the heirs take the minerals and surface as tenants in common in the fractions shown.

This chart is prepared for landmen and title professionals as a working field tool. It is not legal advice and does not substitute for the advice of qualified Ohio oil and gas counsel. It shows Ohio real property, minerals and surface, not the money distribution, and the fractions are the floor of the surviving spouse's interest before the money preferential is applied. Distributions turn on the date of death, the makeup of the estate, and facts such as prior marriages, ancestral property, and predeceased heirs. Complex or disputed heirship should be referred to a licensed Ohio attorney. Citations are to Ohio Revised Code § 2105.06.